

Edwards be examined. The Court disliked that one being defendant or plaintiff, [should be] of counsel with himself in his own cause, where he is plaintiff or defendant with others, or sues or is sued in others' names. The defendant at the hearing had no counsel, and made no defence.

No party,  
plaintiff, or  
defendant,  
[to be]  
counsellor

Another cause of hearing. Rilie, plaintiff, Shellden, defendant, for riot and contempt after the command of the Queen on petition was delivered to her by the plaintiff's [Rilie's] wife, a clamorous and impudent woman, who, after two verdicts and decrees in the Exchequer and several petitions to the Queen, sued here and proved nothing against the plaintiff,<sup>1</sup> who was acquitted of the riot and contempt. The plaintiff [Rilie] was fined £20 for the better government of his wife, and [it was ordered] that she should be whipped and confess her fault, if the precedent of the Court would warrant this, since she is not a party to the bill. And it was moved by the Lord Keeper that no woman should be a suitor in any Court in her own person. And he and the Lord Treasurer to their great comfort have heard the King affirm that he would study to do justice to all, and there should be no prejudice [to anyone] by any private information and petition, if he be not guilty of the matter, for [the King] wishes to protect the innocent of every degree.

RILIE  
v.  
SHELLEDEN  
  
Riot and  
contempt

A clamorous  
woman  
rejected, and  
ordered to  
be whipped  
if there be  
any prece-  
dent for this

No woman  
to be a  
suitor in  
person

Moved, but  
not ordered

The King  
studies to do  
justice to  
all, and is  
the protector  
of the  
innocent

**In Camera Stellata**, coram Consilio ibidem, Mercurij, 18 Maij, 1603, Jacobi Regis 1<sup>o</sup>.<sup>2</sup>

1603  
May 18

The Lord Keeper sermonized that 'it is his Ma<sup>tie</sup>'s pleasure to make knowne in this Cowrte that Consyderinge yt Can not be but that in gouernemente of states there will be abuses, & suche there are now founde to be as will not staye to be prouyded for by publique acte, & therefore his Ma<sup>tie</sup>'s Cheifeste studye & Care beinge to prouyde for these & to execute Justice to all, hathe & intendethe by his

[p. 122]  
The King's  
charge,  
delivered by  
the Lord  
Keeper  
Abuses in  
govern-  
ments  
should have  
speedy  
remedy  
Study and  
care of the  
King to  
purge abuses  
and to do  
justice

<sup>1</sup> Shellden, the plaintiff in the Exchequer, but the defendant here.

<sup>2</sup> Twelve Councillors and Judges were present.

1603

May 18

All shoulde  
take notice  
of proclama-  
tions and  
observe  
them

Contemners  
or neglecters  
of the per-  
formance of  
the procla-  
mations,  
severely  
punished

'Vulgare'  
shall not be  
judges, but  
shall go to  
the judge

Officers  
negligent in  
punishment  
shall make  
account

Contemners  
are pests  
and con-  
temners of  
the royal  
majesty

proclamacions to redresse them, & therefore streightlye Charge the all men to take notice of them & strictlye to obserue & perfourme them, & his Ma<sup>tie</sup> will seuerely punishe all Contemners or neglecters of the perfourmance of them, therefore let this be a premonition or caution to all men to take knowledge of his Ma<sup>tie</sup>'s pleasure herein; & Farther yf anye offende herein, his Ma<sup>tie</sup>'s pleasure & expresse Charge ys that the vulgar shall not leape into his throne & reforme any contempte herein, but shall Complaine to the maiestrate & he shall prouyde for yt, and his Ma<sup>tie</sup> will exacte a verye exacte accounte at his handes for neglecte of his Ma<sup>tie</sup>'s pleasure herein: & whosoener shall Contemne his Ma<sup>tie</sup>'s pleasure herein, his Ma<sup>tie</sup> will accounte them as pestes & Contemners of his Ma<sup>tie</sup>'s roiall dignitey.

*severa levitas:*

*Culpabilis neglectus damnabilis contemptus.*

*Dignitas personae auget culpam.*

ATT-GEN.

v.  
CAREWE

Recusancy  
Copy of the  
confession  
shall not be  
delivered,  
nor shall the  
delinquent  
have counsel  
[p. 124]

Koke, King's Attorney, informed *ore tenus* against Henry Carewe, esquire, a dangerous recusant, upon examination and confession: at the time of his confession, he requested a copy of it, but by order of this Court, he could not have it, nor counsel.

'The sayd Carewe, the nexte day after her Ma<sup>tie</sup> was deade, comes to the parishe church where he dwelles, & telles the parishioners that the publike seruice vsed in her Ma<sup>tie</sup>'s dayes was but onelye deuysed by her Ma<sup>tie</sup> & in force duringe her time, & Contrarye to the rule & vse of the whole worlde, & Contrarye to that w<sup>ch</sup> his Ma<sup>tie</sup> allowethe in his booke, & therevpon delyuers them this in wrytinge, & willes them to locke the Church doore & giue him the keyes, vntill suche time as his Ma<sup>tie</sup> shall Come & determine & appointe the same, & wyshe that all people woulde so doe: & after he had Confessed this in Cowrte, he delyuers in motyues & a kinde of submission, & a noate declaringe that by the lawes of this Realme no man ys to be Condemned but vpon bille & aunswere or originall proces serued vpon him.

'Shutts  
church  
dores' and  
keeps the  
keys

'The Cowrte generallye Conceyues this to be a verye heynous offence (1), againste god & his seruyce: for the booke of common prayer that ys now vsed in o<sup>r</sup> Church, & hathe bene 45 yeares paste, his Ma<sup>tie</sup> hathe hearde & bene presente at & allowed & lyked of the same; & is all the worde of god yt selfe, or warranted & grounded vpon the same, & selected & chosen oute of there popishe praiers as the gowld, & leauinge to them the drosse & poyson as superfluous superstitions or incerteine.

Book of  
Common  
Prayer  
warranted  
as the word  
of God by  
Parliament

'(2). againste the dignitie of o<sup>r</sup> late soueraigne Queene, in praise of whome all spake exceedinge muche as in deede none Coule speake inoughe: For Carewe pretended her religion temporarie & politike & by her alone establyshed, whereas all the worlde dothe knowe, that in regarde of her religion onelye god did fighte for her, & blesse her w<sup>th</sup> peace, plentie & prosperitie; & the booke of Common Prayer was establyshed by the whole state of the kingdome in parliament, & last of all assented vnto & Confirmed by her Ma<sup>tie</sup>: & the secretarye & Lo. Keper did affyrme that his Ma<sup>tie</sup> had sayde that anye scandalle or infamous defamacion or suggestion againste o<sup>r</sup> late soueraigne Queene he woulde haue as seuerely punished, & shoulde be as odious vnto him as anye offence againste his owne person.

[p. 126]  
Commenda-  
tion of Queen  
Elizabeth

The King  
will punish  
defamers of  
Queen  
Elizabeth

'(3). againste the Kinge's Ma<sup>tie</sup> & his booke (w<sup>ch</sup> Mr Secretarie called the mirror of vertue),<sup>1</sup> whoe hathe allowed & Confyrmed o<sup>r</sup> booke of Common prayer, & no woorde againste it in his booke: for, as the Lo. Keper sayd, albeit there be a Chaunge of the gouernor, yet there ys no Chaunge neither of gouernemente nor in gouernemente.

The King's  
book called  
the mirror  
of vertue

The  
gouernor  
changes,  
not the  
government

'(4). againste the state in regarde of the time beinge seditious & stirringe the people: for in all actions the time, place & person are the most necessarye Circumstaunces to be Consydered. For the kinge's ma<sup>tie</sup>, in his lawfull, iuste & lineall title to the Crowne of Englaunde, comes not by succession onelye, or by election, but from god onelye, (so that there is no *interregnum*, as the igno-

Time, place  
and person,  
most con-  
siderable in  
all actions.

[p. 126]

No *inter-  
regnum*  
when it is by  
descent

<sup>1</sup> It seems doubtful which book is here referred to, *Basilikon Doron*, published 1599, or *The True Law of Free Monarchies*, published 1598.

1603  
May 18  
Justices of  
the Peace  
are deter-  
mined, con-  
stables and  
coroners  
continue  
Queen Eliza-  
beth devised  
the crown to  
King James,  
by parol

raunte dothe suppose, vntill the ceremonie of coronation), by reason of his lineall discente; yet Justices of peace are determyned, but Constables & Coroners, & suche pettie officers, remaine still: & the verye instaunte that the breathe was oute of her Ma<sup>tie</sup>'s bodye, Kinge James was lawfull & rightfull kinge: & the Secretarye sayde that her late Ma<sup>tie</sup> in her laste sicknes did deuyse yt vnto him by parolle.<sup>1</sup>

*Qui pietate seditiosus est leuiter pius est vita anteacta.*

Recusants  
are simple or  
dangerous

'For recusants, the Lo. Keper sayd, some are simple & lede by error; those he pittyed & was not forwarde to punishe: others daungerous, wilfull & seditious, as Carewe is one of them.

Our religion  
as ancient as  
Jesus  
Christ

'For o<sup>r</sup> religion, it began w<sup>th</sup> *Consumatum est*, and is as auncient as Jesus Christe.'

*In hoc leges seruiunt Christo quod leges fiant pro Christo.*

Judgment  
*secundum  
delictum*

Relation to  
the King of  
causes and  
motives to  
mercy  
[p. 127]

The King  
commits  
justice but  
keeps mercy  
Eyes of flesh,  
and eyes of  
judgment  
This Court  
hath warrant,

'The secretarye sayde that there iudgemente must be accordinge to the offence, not weyghinge his estate, *saluo contenmento suo*; but it is parte of there honor to relate to his Ma<sup>tie</sup> the cause & occurrences to moue him to mercye: & the Lo. Keper he sayde that the Kinge Committes to them his iustice, but keepes to himselfe his mercye: & that he lookes vpon no man w<sup>th</sup> the eies of mallice or of fleshe, but w<sup>th</sup> the eies of his Judgemente: And that this Cowrte hathe aunciente warraunte & authoritie bothe by Common

of common and statute law, to proceed on confession *ore tenus*

Justice  
ordinary or  
extra-  
ordinary  
Council of  
State war-  
ranted by  
statute

& statute lawe to proceede in this kinde, 10 E. 2 [?] and 12 R. 2. For the kinge's Justice is ordinarie or extra-ordinarie: & to proceede at the discretion of his Ma<sup>tie</sup>'s Counselle of state is extraordinarye, & warranted by statutes.

Fine 1,000*l.*,  
imprison-  
ment during  
pleasure,  
recognition  
of his fault  
in church and

'The greater opinion of the Cowrte was to be fined 1000<sup>li</sup>, imprisonmente during the king's pleasure, recognition of his faulte in the church & at the Assises: & to be bounde at the Assises, and good behaviour

The Court  
differs as to  
the fine: the  
greater  
number is  
the sentence

to his good behauyoure: but Sr John Fortescue, Justice Gawdy, *L'archeuesque et Lord Keper*, fine 3000<sup>li</sup>,' but this did not alter the sentence of the Court.

<sup>1</sup> See *post*, p. 177, and Appendix XI.

**In Camera Stellata**, coram Consilio ibidem, 1603  
Veneris, 20 Maij, 1603, Jacobi Regis 1<sup>o</sup>, adonque presente,  
L. Keper, Lo. Tresorer, l'archeuesque, ambideux presidents,<sup>1</sup>  
ambideux Chief Justices, et S<sup>r</sup> John Fortescue. May 2

Bayneham<sup>2</sup> and Sir Thomas Lucas for writing to jurors to appear, maintenance, and procuring this. It was delivered as law, that no man may write for any man to appear in any case where he himself is not interested. It was well proved that he wrote to jurors to appear, but the charge in the bill was that he procured them to give their verdict corruptly; and so, notwithstanding the offence was well proved, yet because he was not well charged in the bill, he was not sentenced: so [he was] condemned *in foro scientiae* but acquitted *in foro iudicii*, for default of a good charge in the bill.

BAYNEHAM  
v.  
SIR THOMAS  
LUCAS  
—  
Writing to  
jurors to  
appear,  
when one is  
not a party  
to the  
matter, is  
illegal  
[p. 128]  
Defendant  
acquitted  
for default of  
good charge  
in the bill

**In Camera Stellata**, coram Consilio ibidem, 1603  
Veneris, 27 Maij, 1603, Jacobi Regis 1<sup>o</sup>, adonque presente,  
Lo. Keper, l'archeuesque de Canterberie, Lo. Tresorer,  
Count Shrewseberie, Lo. H. Hawarde,<sup>3</sup> Lo. Zouche, S<sup>r</sup> W<sup>m</sup>  
Knowlles, Baron de Graies,<sup>4</sup> ambideux Chief Justices, et S<sup>r</sup>  
John Fortescue. May 27

Two causes of hearing between Moyles and Ewer, cross bills for several riots; where one commands his servant to enter on [certain] land and to take distress peaceably, and he enters with many others riotously, the master is a rioter. In the first cause, where Ewer was defendant, he was fined £200, and damages, the others his servants, 40 marks and 20 marks, and imprisonment.

MOYLES  
v.  
EWER  
—  
Riots  
The com-  
mander is  
the rioter  
Fine 200l.,  
imprison-  
ment as of  
course

In the second cause, where Ewer was plaintiff for

EWER  
v.  
MOYLES  
—  
Forgery

<sup>1</sup> See note, p. 160.

<sup>2</sup> Probably Sir Edmund Bayneham, captain of the club of profligates known as the 'Damned Crue.' One of his exploits is recorded in this book, *ante*, p. 114. He was afterwards implicated in the Gunpowder Plot. See *Manningham's Diary*, Camden Soc. p. 142.

<sup>3</sup> Probably Lord Henry Howard, second son of Henry Howard, Earl of Surrey (beheaded, 1547); he was afterwards created Baron Howard of Marnhill, and Earl of Northampton.

<sup>4</sup> Sir William Knowles was created Baron Knowles of Greys, co. Oxford, May 13, 1603.